

Ex 702/23

Both parties and counsels remained absent.

On perusal of the order dt 02.04.2024 in RFA no.604/23, Hon'ble High Court of Karnataka stayed the Judgment and decree in O.S 6666/19 dt 25.08.2022 subject to the deposit of Rs.15,82,435/-.

On perusal of the order sheet in Ex.petition JDR deposited the above said amount through DD dt 24.07.2023. Already DHR received a sum of Rs.15 lakhs as per the order of the Hon'ble High Court of Karnataka in RFA 604/23 and also undertaken to refund the same in the event of decree is reverse in the RFA.

The present Ex.petition is arraising out of Judgment and decree in O.S O.S 6666/19 due to the stay in RFA the present Ex.petition is not maintainable at this stage.

Ex.petition is closed with liberty to both parties to file fresh Ex.petition after the disposal of the RFA no.604/23.

01/08/2025

XII Add.CC & SJ., Bluru